

CYPRUS REPUBLIC

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

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COMMISSIONER

File No.: 11.17.001.011.062

DECISION

Complaint regarding the denial of access rights
Mr. XXX

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of individuals with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I have examined a complaint submitted to my Office on April 10, 2023, by Ms. XXX (hereinafter referred to as the "Complainant"), concerning the denial of access rights by the Health Insurance Organization (hereinafter referred to as the "Respondent").

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

Facts of the Case

Positions of the Complainant

2. In the complaint dated April 10, 2023, it was stated that:

2.1. The Complainant works as XXX,

2.2. The Complainant, in her letters to the Board of Directors of the Respondent, dated January 5 and March 1, 2023, requested access to:

2.2.1. her corrected written test for the filling of three Senior Health Insurance Officer positions, dated September 24, 2022,

2.2.2. the detailed grading of her written test (correct, incorrect, points per question, etc.),

2.2.3. the detailed method of calculating her final score, and

2.2.4. the correct answers used for the correction of her written test.

2.3. In letters from the Respondent dated January 17 and March 17, 2023, the Complainant was informed that her requests were denied,

2.4. The Complainant believes that the rejection of her "legitimate requests" is legally and factually misguided and not legally and duly justified, and contravenes the Regulation, the Law on the Protection of Individuals Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law No. 125(I)/2018, as well as the Announcements and Guidelines of the Commissioner for Personal Data Protection, for example, the Guidelines (No. 4/2017) to data controllers (Ministries / Departments / Services) of the Public Sector and Organizations of the broader Public Sector regarding the exercise of the right of access by employees or job applicants,

2.5. A relevant reference is made to Case 1521/2009, Dimitris Dimitriou v. COT, dated 31/05/2011. As stated, the candidate has the right to request an inspection and re-evaluation of their written test by challenging the grading assigned to them. The candidate, in this case the Complainant, is not obliged to take any assurance from the administration regarding the correctness of the grading process as a given. It is also stated that candidates should be allowed to see their written tests so that they can ascertain the exact state of affairs and be able to promote or substantiate their belief regarding incorrect grading,

2.6. The Respondent has an obligation for full transparency and a duty to provide the Complainant with

access to the requested documents.

3. The complaint was accompanied by the following:

3.1. A letter from the Complainant to the Respondent, dated November 2, 2022, in which the Complainant requests that a re-evaluation of her written test for the administrative crisis skills test (Part B of the written examination) be arranged and that she be informed of the result of the re-evaluation by the organization assigned to conduct the examination,

3.2. A response from the Respondent to the Complainant, dated November 25, 2022. In this letter, it is stated that the written examination was organized by XXX (hereinafter referred to as the "Center") of XXX (hereinafter referred to as the "University"). It is mentioned that the grading of the said test is done "systematically." Specifically, two independent graders enter the answers into the system based on two different and independent procedures. Subsequently, the system proceeds to automatically grade the written tests in two independent processes. If there is a discrepancy in the grades, then a third grader enters the answers into the system to determine the correct grading. Ultimately, it is stated that a re-evaluation of the Complainant's written test cannot be done at this time,

3.3. A letter from the Complainant to the Respondent dated January 5, 2023, in which she requests to be allowed to inspect her written test and obtain a copy of it,

3.4. A letter from the Respondent to the Complainant, dated January 17, 2023, in which it is stated that the complainant may inspect and/or obtain a copy of her written test in Part B, without, however, being entitled to obtain a copy and/or inspect the examination paper,

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3.5.

Letter from the Complainant to the Respondent, dated March 1, 2023, in which it is noted that the Complainant inspected her written exam and received a copy thereof (which is attached to my Office), and requests that a copy of the detailed grading in Part B and a copy of the correct answers be provided. It also refers to the number XXX, which was noted on the Complainant's written exam, "which is evidently the score" that the Complainant received, "but there is no evidence regarding how this score was determined."

3.6.

Letter from the Respondent to the Complainant, dated March 17, 2023, in which, among other things, it is stated that a copy of the correct answers for Part B cannot be provided, as this document does not constitute personal data of any candidate such that they are entitled to receive a copy.

3.6.1. In this letter, the grading of the Complainant's written exam in Part B of the Administrative Judgment Skills Test is included, as it has been extracted from the system and compared. Specifically, scores are provided for each of the following sections: Big Picture, Company Protocol, Delegative, Managing Objective, One to One, People Management, Professional Modesty, Reputation Management, Team, as well as the overall final score received by the Complainant.

3.6.2. In this letter, it is also mentioned that according to information received by the Respondent from the Center that conducted the examinations, both the test and the answers to the test questions constitute an evaluation tool and are protected by intellectual property provisions, as a work of intellectual creation developed by the company that created it and are subject to commercial exploitation. They are also covered by commercial - professional confidentiality, as any disclosure of the answers to the test would render the test itself, in essence, commercially unexploitable, causing the company that created it material and moral damage.

4.

It is noted that the complaint was also communicated to the Respondent, specifically at the email address chairman@hio.org.cy, as well as to the addresses maintained by the Chairman of the Board and the data protection officer of the Respondent, which include their names and have the domain hio.org.cy.

Positions of the Respondent

5.

On May 5, 2023, I sent a letter to the Respondent, submitting the positions of the Complainant and posing clarifying questions for the examination of the complaint - grievance. Specifically, the Respondent was requested to submit, by May 24, 2023, the following:

"5.1.

the positions regarding what is recorded in the complaint,

5.2.

since the candidate or others do not have possession of the test, how does the disclosure of the correct answers or all possible answers affect the relevant provisions regarding intellectual property and render the test commercially unexploitable?"

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5.3. Since the candidate or others do not possess the test, nor the possible answers, how does the information regarding the correct choice for each question (-3, -2, -1, +1, +2, +3) and not the correct answer, infringe upon the relevant provisions of intellectual property law and render the test commercially unexploitable?

5.4. To what extent does the information regarding which answers of the complainant are incorrect, infringe upon the relevant provisions of intellectual property law and render the test commercially unexploitable?

5.5. The official report/document from the Center, which refers to the details of paragraph 3.6.1. of this document. To what extent have these details been included in the official agreement/contract of the Organization with the Center for conducting the examinations? If so, please send the said agreement/contract.

5.1. Also, by this date, the Respondent was requested to send any other documents, papers, and/or information related to the complaint. If in the Respondent's response there was reference to specific documents (including letters and messages), these should be attached.

6. On the same day, namely on May 5, 2023, the data protection officer of the Respondent requested an extension of at least two weeks for submitting the above to my Office, due to the absence of XXX and, as stated, because of XXX.

7. Considering that the positions of the Respondent were needed to duly investigate the complaint, I accepted the above request and responded to the Respondent on May 8, 2023, that a deadline for response was granted until June 8, 2023.

8. However, the above deadline passed without the Respondent submitting their positions regarding the requests of my letter dated May 5, 2023, nor did they inform about their non-response or the reasons for their non-response. For this reason, I sent another letter to the Respondent, dated August 7, 2023, in which I granted a final deadline for response to the above letter from my Office, on August 21, 2023.

9. Nevertheless, I did not receive any response or update this time either.

10. I also note that in October 2023, an Officer from my Office attempted to contact the data protection officer of the Respondent by phone. Due to her absence, he contacted an Officer of the Respondent who deals with personal data issues, requesting that the letter from my Office dated May 5, 2023, be answered.

11. Due to the lack of a written response from the Respondent to my Office, an Officer from my Office contacted the data protection officer of the Respondent by phone in November 2023, requesting that, within the next few days, the Respondent's response be sent to my Office.

12. However, I had not received any official response from the Respondent.

13.1. Considering that the failure to submit information, specifically the requested information from my

Office's letter dated May 5, 2023, resulted in the failure to demonstrate that the Respondent fulfilled their obligations regarding the

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The right of access submitted by the Complainant, I found that the Respondent did not prove to my Office that he has properly satisfied the Complainant's right, in violation of Article 15 of the Regulation.

13.2. Considering that the Respondent did not submit a response to my Office, as well as the fact that more than eight months had elapsed from the initial deadline I set in my letter dated May 5, 2023, I found that the Respondent is not cooperating with my Office, as he is obliged to do, in violation of Article 31 of the Regulation.

13.3. As a result of the above, on February 2, 2024, I issued a preliminary Decision, in which I found that there is a prima facie violation by the Respondent of:

a) Article 15 of Regulation (EU) 2016/679, because he did not prove that he has properly satisfied the right of access submitted by the complainant, and

b) Article 31 of Regulation (EU) 2016/679, because he did not demonstrate the cooperation required by the Regulation with my Office.

13.4. Notwithstanding the above, pursuant to Article 57(1)(a) of Regulation (EU) 2016/679, I issued an "Order to the Health Insurance Organization to submit to my Office the requested information from my Office's letter dated May 5, 2023, within 10 days of receipt" of the preliminary Decision.

13.5. Furthermore, according to the provisions of Article 58(4) of the Regulation, which, among other things, provides that the exercise by a Supervisory Authority of its powers under this Article is subject to appropriate safeguards, including the due process provided by the law of the Member State, within the framework of the right to a hearing provided by Article 43 of the General Principles of Administrative Law of 1999, Law 158(I)/1999, as amended, the Respondent was invited to submit, within four weeks of receipt of the preliminary Decision, the reasons and circumstances that should be taken into account in the context and for the purposes of imposing an administrative sanction, pursuant to Article 58(2) of the Regulation and Article 32(1) and (3) of Law 125(I)/2018.

14. On the same day, the Respondent contacted my Office by telephone and subsequently via email, requesting an extension for the submission of the requested information, as referred to in paragraphs 13.4. and 13.5. of this document, due to the fact that it would be extremely difficult for the Respondent to meet the deadlines I set, because of the absence of the data protection officer, despite the fact that, as mentioned, every possible effort would be made.

14.1. On the same day, my Office sent a letter to the Respondent, stating that at this specific stage of the process, a further request for an extension could not be supported and approved. That is to say, the said request for an extension was not accepted.

15. On February 9, 2024, the Respondent sent a letter to my Office, in which the following, among other things, was mentioned:

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15.1. The Respondent expressed his sincere apologies for any delay observed in submitting his positions within the deadline and stated that he is at the disposal of our Office to provide any information required to facilitate the examination of the complaint. The delay was not intentional and was solely due to circumstances that could not be controlled by the Respondent at the material time.

15.2. Included were details regarding the announcement of three positions for Senior Officer of the Organization - Respondent and the assignment of conducting the written examinations to the Center. The written examination, which took place on September 24, 2022, included: a) a specific topic on the General Health System (GHS) and the Health Insurance Organization - Respondent, and b) topics on administrative judgment and capability. The results of the examination were published in the Official Gazette of the Republic on October 27, 2022.

15.3. The Respondent never obtained access to and/or possession of Part B - Skills Test, as according to the essential terms of the offer, which constituted the final agreement between the Respondent and the University, it was stipulated that:

“The intellectual property rights over the topics, the grading guide, and the correct answers belong exclusively to XXX or, as the case may be, to the question setter, depending on the relevant agreement between them. A copy of the topics (‘the written’) is provided to the project assignor only in printed form. The copy is granted solely for the purpose of record-keeping by the assignor and reproduction, distribution, publication, or reuse in any manner is prohibited. Copies of the Skills Tests are not provided. The project assignor does not have access to the grading guide and the correct answers and no related copies are granted to them.”

15.4. Regarding the request for access from the Complainant, as included in the letter to the Respondent dated January 5, 2023, the Respondent informed my Office that in examining the Complainant's request, he studied and took into account the access rights of data subjects, as arising from the provisions of the Regulation and the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018. Also, as mentioned, relevant case law of the Court of the European Union was studied and taken into account, specifically the case C-434/16 Peter Nowak v. Data Protection Commissioner, according to which written answers and corrections by the examiner constitute personal data to which the candidate has a right of access and that the examiner's corrections represent the opinion or assessment of the examiner regarding the individual performance of the candidate.

15.5. Following a relevant arrangement, on February 24, 2023, the Complainant, accompanied by a lawyer, attended the office of the personnel officer of the Respondent and received a copy of her written work in Part B of the skills test on administrative judgment. During the meeting, it was clarified by the personnel officer that the handwritten number “XXX” in the center of her written work refers to the serial number of the written work, and not to any grading. As stated by the Respondent to my Office, because the

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The grading of the administrative judgment competency tests is conducted systematically; there are no, nor were there at the essential time, any corrections and/or comments from the examiner that could be provided to the Complainant, beyond the written test itself with her answers.

15.6. The score that the Complainant received in Part B amounted to XXX%, a grade which was communicated to her through the relevant publication of results in the Official Gazette of the Republic.

15.7. In a written letter from the Complainant's lawyers, dated March 1, 2023, it was stated that the Complainant's written test, which was received, was not accompanied by the document of correct answers, so that there would be the possibility of verifying the correctness or otherwise of her answers. A request was also submitted to the Respondent for a copy of the detailed grading of the Complainant's written test in Part B, as well as the correct answers. Therefore, the Respondent, in a letter dated March 17, 2023, reiterated the process by which the administrative judgment competency tests are graded and communicated the detailed grading of the Complainant's written test, which was extracted from the system, for each section, as presented in paragraph 3.6.1. of this Decision. In this letter, the Respondent stated that the request for the correct answers could not be satisfied, as it does not constitute personal data of the candidates and since the test, as well as the answers to the questions, are protected by intellectual property provisions and are subject to commercial exploitation, and that they are covered by commercial - professional confidentiality, as any disclosure would render the test commercially unexploitable.

15.8. The Respondent believes that no right of the Complainant has been deprived and/or violated by the Respondent, because the University secures the administrative judgment competency test from a third independent, and unknown to the Respondent, partner, based on an agreement to which the Respondent is not a party, and since the Respondent signed a separate assignment agreement with the University, under which he had no right to receive any copy of the administrative judgment test and

never received or had in his possession a copy of the test and/or the correct answers mentioned in the letter from the Complainant's lawyers, dated March 1, 2023. As mentioned, the Respondent acted from the very beginning in a direct manner, with transparency and consistency towards the requests of the Complainant and in full accordance with the obligations he owes to her, under the legislation on the protection of personal data.

15.9. Regarding the method of grading the candidates, based on a message received by the Respondent from the University, which contains the positions of the company to which the test belongs, it is stated that for each scenario, different actions are presented which the candidate is called to evaluate in terms of their effectiveness, using the scale -3, -2, -1, +1, +2, +3 (evaluation scores for each action). For each action, the company, as the creator of the test and based on its international experience, has arrived at a specific ideal answer (score selection on the scale), which gathers the highest score. However, it is also possible for the other answers (scores on the scale) to earn points, depending on how close or far the candidate's answer (score on the scale) is to the ideal answer. That is, a candidate can achieve the same score by selecting three ideal answers - scores on five questions, or by answering four.

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"Almost ideal" answers to these five questions, meaning actions that have a lesser positive impact on the scenario. Furthermore, in another response from the company to which the test belongs, which was communicated to the Respondent, it was mentioned that since the questionnaire is in written and static form, i.e., the same questions are presented in the same order to each candidate completing it, the disclosure of the correct answers for each of the one hundred questions, that is, the correct suitability scoring -3, -2, -1, +1, +2, +3, carries the risk of leaking the answers into the Cypriot market, rendering the tool essentially commercially unexploitable for the company. Additionally, since there is not just one correct answer to each question, but all answers are graded according to their suitability, to understand which questions are incorrect, the correct method of scoring them would need to be disclosed. Therefore, the information regarding the number of incorrect answers provided by the Complainant does not in itself confer any value, as this information must be interpreted in relation to the aforementioned parameters.

16. The Respondent, in his letter, submitted to my Office:

16.1. a letter from the Center to the Respondent, dated June 15, 2022, which mentions the proposal for undertaking the evaluation of candidates for the positions of Senior Officer of the Respondent. In the letter, the type of examinations is mentioned (Part A Special Subject, Part B Competency Test (Administrative Judgment and Ability)), the cost of the examinations, the method of examination, grading, and delivery of results, information about the question setters, and an update that those involved (question setters, markers, officials, and clerks) sign a confidentiality and non-disclosure agreement.

In this proposal, it is stated that:

"4. Each written exam is graded by two markers. In the competency tests, two entries are made.

5. After the written exam is graded by the second marker, the first grade is revealed under the responsibility and supervision of XXX and compared with the second. If there is no difference greater than 10% of the maximum possible score for the subject between the two total scores, then the average of the two scores constitutes the grade for the written exam in the subject.

6. In the event that there is a difference greater than 10% of the maximum possible score for the subject between the two total scores, then the written essay is re-graded according to the following procedure: The scores of the two markers are concealed, and the re-marker grades the written exam without knowing them. The final grade of the written exam is the average of the three scores - those of the two markers and the re-marker - and is not subject to revision: It is understood that no further re-examination of the written exams or re-grading is allowed.

7. The competency tests are graded electronically, and the results are generated through statistical software."

Beyond the above, it is stated that in the event that the Center is assigned the said evaluation, a data

processing contract concerning personal data will be signed between the Respondent and the Center.

16.2. a letter from the Respondent to the Center, dated August 4, 2022, stating that the offer from the Center is accepted,

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16.3. Letter from the Complainant to the Respondent, dated November 2, 2022, as referenced in paragraph 3.1 of this document,

16.4. Response from the Respondent to the Complainant, dated November 25, 2022, as referenced in paragraph 3.2 of this document. The Respondent noted in my Office that the procedure described in this letter is in accordance with the content of the Respondent's agreement with the University,

16.5. Letter from the Complainant to the Respondent, dated January 5, 2023, which was received by the Respondent on January 9, 2023 (according to the stamp on the letter), as referenced in paragraph 3.3 of this document.

16.6. Letter from the Respondent to the Complainant, dated January 17, 2023, as referenced in paragraph 3.4 of this document,

16.7. Letter from the Complainant to the Respondent, dated March 1, 2023, as referenced in paragraph 3.5 of this document,

16.8. Letter from the Respondent to the Complainant, dated March 17, 2023, as referenced in paragraph 3.6 of this document,

16.9. Letter from the University to the Respondent, dated March 23, 2023, regarding the method of evaluating the administrative competency test,

16.10. Letter from the University to the Respondent, dated March 23, 2023, containing responses from the company that created the administrative competency test,

16.11. Copy of the written examination received by the Complainant.

17. In the context of the right to a hearing provided by Article 43 of the Law on General Principles of Administrative Law of 1999, Law 158(I)/1999, the Respondent, in a letter to my Office dated February 29, 2024, submitted the reasons and circumstances that should be taken into account in the context and for the purposes of imposing an administrative sanction, pursuant to Article 58(2) of the Regulation and Article 32(1) and (3) of Law 125(I)/2018, stating the following:

17.1. The Respondent adopts and reiterates the content of his letter dated February 9, 2024,

17.2. Regarding the violation of Article 15 of the Regulation:

17.2.1. The Respondent correctly, promptly, and fully satisfied and/or to the extent he was able to do so, the right of the Complainant, in accordance with Article 15 of the Regulation, by informing her of the possibility of re-evaluation of her written examination, providing her with a copy of her written examination, and offering her, both orally and in writing, all the clarifications she requested,

17.2.2. The provision of a copy of the administrative competency test and/or any answers to the questions of the test to the Complainant was impossible for the Respondent, as he never obtained access to and/or possession of these documents, pursuant to the provisions of the relevant contract he signed with the Center. Such documents and/or materials are not disclosed (nor to the Respondent) for reasons related to

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regarding the rights and/or freedoms of third parties and, specifically, the rights of the company that created and/or owns the test, such as the right of intellectual property, the right of commercial – professional confidentiality, and the right of economic exploitation of intellectual work,

17.2.3. the Complainant did not merely receive the data she was entitled to, but all the data that the Respondent had in his possession and that concerned her requests,

17.2.4. therefore, the Respondent did not violate the Complainant's right to access her data. On the

contrary, the Respondent acted from the very beginning, in a direct manner, with transparency and consistency, in response to her requests and in full accordance with the obligations he bears, in a way that allowed the Complainant to exercise her right easily and within a reasonable time, so that she could be informed and able to verify the legality of the processing of her data,

17.3. regarding the violation of Article 31 of the Regulation:

17.3.1. due to the sensitivity of matters concerning personal data, according to the procedure that was in effect until now, the correspondence of the Respondent with my Office was conducted exclusively through the data protection officer of the Respondent, without the management of the Respondent being directly informed,

17.3.2. from the moment she became aware of the complaint, the data protection officer "immediately took action," so that she could examine the complaint, in order to be able to respond in a timely manner to my Office. Duly, the data protection officer personally undertook the examination of the matter, due to XXX,

17.3.3. the data protection officer of the Respondent, upon receiving the complaint from my Office on May 5, 2023, communicated on the same day, requesting from my Office a two-week extension, due to the absence of XXX. My Office granted an extension for a response until June 8, 2023. XXX,

17.3.4. it follows from the above that there was an initial intention for immediate cooperation with my Office and assistance in my work. However, around the end of May 2023, XXX, the data protection officer was absent from her work, XXX,

17.3.5. the fact that the data protection officer took it upon herself to personally handle the case, without the involvement of existing staff, in conjunction with the fact that the General Management of the Respondent was not informed of the letters from my Office, resulted in the necessary monitoring regarding the preparation of a response letter to my Office not taking place,

17.3.6. as a result of the above, the position of the Respondent is that the delay observed was in no case intentional and that it constitutes a product of human error and/or incorrect procedure. With my prima facie Decision, dated February 2, 2024, the Respondent responded promptly, and in any case within the deadline, demonstrating the necessary cooperation, while also implementing the following internal corrective measures:

17.3.6.1. it was requested from my Office that correspondence with the Respondent be forwarded to his official email address, hio@hio.org.cy, so that it could also be monitored by the General Management,

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17.3.6.2. Instructions were given to the officials of the Department of Security and Data Protection to prioritize the handling of requests and letters originating from my Office.

17.3.6.3. All officials of the Department were granted access to the necessary information of the information system so that they could respond more promptly and efficiently to the requests and letters from my Office.

17.3.7. The Respondent accounts for his inability to respond to my letters and assures that such a situation will not recur in the future. This incident is an isolated case, as there has always been close cooperation and communication between the Respondent and my Office.

17.4. Regarding the imposition of an administrative fine, the following was stated:

17.4.1. It appears that there is no obligation to impose an administrative fine, nor is there a specified amount for it, beyond the legally permitted maximum.

17.4.2. The Respondent promptly and as required satisfied the requests for access and clarification from the Complainant, providing all documents and information in his possession. Therefore, all actions of the Respondent towards the Complainant were lawful, consistent, and in good faith.

17.4.3. Regarding the alleged violation for purported non-cooperation of the Respondent with my Office, this is a result of human error and/or incorrect internal procedure and was not done intentionally

or with the intent to cause inconvenience or obstruct my work. Under no circumstances would the Respondent, as a legal entity of public law, be expected to obstruct the work and/or not cooperate with my Office, as the competent Supervisory Authority for the protection of personal data, especially when the Respondent:

17.4.3.1. Fulfilled the obligations prescribed by the Regulation towards the Complainant, as the data controller,

17.4.3.2. Conducts corresponding investigations, either ex officio or upon receipt of a complaint, for violations of the General Health System Law, which often concern the personal data of the beneficiaries of the General Health System, which he notifies to my Office,

17.4.3.3. Properly, promptly, and transparently informs my Office of any issues or matters arising that pertain to the General Health System and require my guidance or opinions.

17.4.4. In addition to the above, the Respondent reiterates that any delay and/or act or omission that may be interpreted as unwillingness to cooperate with my Office will not be repeated in the future and that corrective measures, as mentioned above, have been taken in this regard. At the same time, the Respondent invites me to take into account "the excellent cooperation to date," which, as stated, is also evidenced by the Respondent's immediate response to my "letter" dated February 2, 2024.

17.4.5. This incident is an isolated case, while the Respondent, as the data controller, has never engaged my Office for any violation of the Regulation and/or Law 125(I)/2018.

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B.

Legal Framework

18.

According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

19.

In the same article of the Regulation, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

20.

The processor is defined as "the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the data controller."

21.

Regarding the right of access, Article 15 of the Regulation provides the following:

"1.

The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information:

a)

the purposes of the processing,

b)

the categories of personal data concerned,

c)

the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations,

d)

where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period,

e)

the existence of the right to request from the data controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject or to object to such processing,

f)

the right to lodge a complaint with a supervisory authority,

g)

when the personal data are not collected from the data subject, any available information as to their source,

h)

the existence of automated decision-making, including profiling, as referred to in Article 22 paragraphs 1 and 4 and,

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At least in these cases, important information regarding the logic followed, as well as the significance and the anticipated consequences of the said processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject has the right to be informed about the appropriate safeguards in accordance with Article 46 regarding the transfer.

3. The data controller provides a copy of the personal data being processed. For additional copies that may be requested by the data subject, the data controller may impose a reasonable fee for administrative costs. If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format.

4. The right to receive a copy referred to in paragraph 3 does not adversely affect the rights and freedoms of others.

22. Regarding the assignment of processing to a processor, Article 28 of the Regulation provides that:

“3. The processing by the processor shall be governed by a contract or other legal act under Union law or the law of the Member State, which binds the processor to the controller and specifies the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. The said contract or other legal act specifically provides that the processor:

a) processes the personal data only on documented instructions from the controller, including with regard to the transfer of personal data to a third country or an international organization, unless required to do so by Union law or the law of the Member State to which the processor is subject; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest,

b) ensures that persons authorized to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality,

c) takes all measures required pursuant to Article 32,

d) complies with the conditions laid down in paragraphs 2 and 4 for engaging another processor,

e) takes into account the nature of the processing and assists the controller by implementing appropriate technical and organizational measures, insofar as this is possible, for the fulfillment of the controller's obligation to respond to requests for exercising the rights of the data subject as provided in Chapter III,

f) assists the controller in ensuring compliance with the obligations arising from Articles 32 to 36, taking into account the nature of the processing and the information available to the processor,

g) at the choice of the controller, deletes or returns all personal data to the controller after the end of the provision of processing services and deletes existing copies, unless Union law or the law of the Member State requires storage of the personal data,

h) makes available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article and allows for and contributes to audits, including inspections, conducted by the controller or another auditor mandated by the controller.

Regarding the first subparagraph point h), the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other Union or Member State data protection provisions.”

23. Regarding the obligation of the controller to cooperate with the Data Protection Commissioner, Article 31 of the Regulation provides that: “The controller and the processor and, where applicable, their representatives shall cooperate, on request, with the supervisory authority in the performance of its tasks.”

24. Pursuant to Article 57, paragraph 1 of the Regulation, the Data Protection Commissioner has, among other duties, to:

“f) handle complaints lodged by the data subject or by a body, organization, or association in accordance with Article 80 and investigate, to the extent appropriate, the subject matter of the complaint and inform the complainant about the progress and the outcome of the investigation within a reasonable period, particularly if further investigation or coordination with another supervisory authority is required.”

25. Article 57, paragraph 1 of the Regulation provides, among other things, that the Data Protection Commissioner has the following investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor to provide any information required for the performance of its tasks.”

26. Pursuant to Article 58, paragraph 2 of the Regulation, the Data Protection Commissioner has the following corrective powers:

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«a) to issue warnings to the data controller or the processor that intended processing operations are likely to violate provisions of this regulation,

b) to issue reprimands to the data controller or the processor when processing operations have violated provisions of this regulation,

c) to instruct the data controller or the processor to comply with the requests of the data subject for the exercise of their rights under this regulation,

d) to instruct the data controller or the processor to bring processing operations into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified deadline,

e) to instruct the data controller to notify the data subject of a personal data breach,

f) to impose a temporary or definitive restriction, including a ban on processing,

g) to issue an order for the rectification or erasure of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and an order to notify those actions to recipients to whom the personal data have been disclosed pursuant to Article 17(2) and Article 19,

h) to withdraw the certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, provided that the certification requirements are not met or are no longer met,

i) to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

j) to issue an order to suspend the transfer of data to a recipient in a third country or to an international organization.»

27.

Regarding the general terms for the imposition of administrative fines, Article 83, paragraph 2, of the Regulation provides the following:

«2.

Administrative fines, depending on the circumstances of each individual case, shall be imposed in addition to or instead of the measures referred to in Article 58(2)(a) to (h) and in Article 58(2)(i). In deciding on the imposition of an administrative fine, as well as on the amount of the administrative fine for each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered,
- b) the intent or negligence that led to the infringement,
- c) any actions taken by the data controller or the processor to mitigate the damage suffered by data subjects,

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- d) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they have implemented pursuant to Articles 25 and 32,
- e) any relevant previous infringements by the data controller or the processor,
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate its possible adverse effects,
- g) the categories of personal data affected by the infringement,
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether and to what extent the data controller or the processor notified the infringement,
- i) where measures referred to in Article 58(2) have previously been ordered against the involved data controller or processor regarding the same subject matter, compliance with those measures,
- j) adherence to approved codes of conduct in accordance with Article 40 or approved certification mechanisms in accordance with Article 42, and
- k) any other aggravating or mitigating factor arising from the circumstances of the particular case, such as the financial benefits gained or losses avoided, directly or indirectly, from the infringement.

3.

In the event that the data controller or the processor, for the same or for related processing operations, infringes several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious infringement.

4.

Infringements of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of undertakings, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- a) the obligations of the data controller and the processor under Articles 8, 11, 25 to 39, and 42 and 43,
- b) the obligations of the certification body under Articles 42 and 43,
- c) the obligations of the monitoring body under Article 41(4).

5.

Infringements of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of undertakings, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent, in accordance with Articles 5, 6, 7, and 9,
- b) the rights of data subjects in accordance with Articles 12 to 22,
- c) the transfer of personal data to a recipient in a third country or to an international organization in accordance with Articles 44 to 49,

d) any obligations under the law of the member state established pursuant to Chapter IX,
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e) non-compliance with an order or with a temporary or definitive restriction on processing or with a suspension of the circulation of data imposed by the supervisory authority pursuant to Article 58 paragraph 2 or failure to provide access in violation of Article 58 paragraph 1.

28. Regarding the imposition of an administrative fine, Article 32 of the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018, provides that:

“(1) Subject to the provisions of Article 83 of the Regulation, the Commissioner imposes an administrative fine.

(...)

(3) An administrative fine imposed on a public authority or public body concerning non-profit activities shall not exceed two hundred thousand euros (€200,000).”

29. Pursuant to Law 125(I)/2018, it is provided that a criminal offense is committed:

“33.-(1)(b) by the data controller or processor who does not cooperate with the Commissioner, in accordance with the provisions of Article 31 of the Regulation.”

C. Reasoning

30. The complaint under investigation concerns the access requests submitted by the Complainant to the Respondent on January 5 and March 1, 2023. The Respondent is the data controller for the data of the Complainant and the other candidates - examinees who participated in the said examinations, as he has determined the purpose and means of the processing.

31. However, the assignment of the evaluation of the candidates to the Center results in the Center taking on the role of the processor, as it processes personal data on behalf of the Respondent.

32. According to Article 28 of the Regulation, processing by the processor is governed by a contract or other legal act. Paragraph 3 of this article specifies the elements that must be included in this contract, while subparagraph e) of this paragraph provides that the processor “takes into account the nature of the processing and assists the data controller by implementing appropriate technical and organizational measures, insofar as this is possible, for the fulfillment of the data controller's obligation to respond to requests for the exercise of the rights of the data subject provided for in Chapter III.”

33. Therefore, it is the obligation of the Center to assist in fulfilling the obligations of the data controller regarding the satisfaction of the rights of the data subjects. Moreover, the processing assignment contract aims to bind the processor to the data controller.

34. I positively assess the fact that in the Center's proposal to the Respondent, it is stated that if the Center is assigned the said evaluation, a data processing assignment contract will be signed between the Respondent and the Center. However, I note that this contract has not been sent to my Office and, therefore, I cannot comment on its content or existence.

35. The right of access aims to allow the data subject to verify their personal data, in order to, as stated in Recital 63 of the Regulation, “be aware of and verify the lawfulness of the processing.” More specifically, the purpose of the right of access is to provide the data subject with the ability to understand how their personal data is processed, as well as the consequences of the processing and to verify the accuracy of the data being processed. Therefore, through the right of access, data subjects are provided with sufficient, transparent, and easily accessible information regarding the processing of data, and they are enabled to verify various aspects of a processing operation, such as the lawfulness and accuracy of the data.

36. The purpose of the examinations was to assess and/or determine the level of knowledge, skills, and/or judgment of the candidates who took part in the said examinations, so that positions of Senior

Health Insurance Officer could be filled. The success of a candidate in these examinations, particularly the score received by each candidate, impacts their rights and interests, as this score is a factor that may influence the likelihood of the candidate obtaining the said position.

37. It is understood that within the framework of the right of access as provided in the Regulation, the Complainant has the right to receive only the data concerning them, as well as the information specified in Article 15(1) of the Regulation, without adversely affecting the rights and freedoms of others, pursuant to Article 15(4) of the Regulation.

38. Therefore, it must first be clarified what personal data of the Complainant is being processed in the context of the written assessment that was conducted. Subsequently, it must be examined whether this data can be provided to them without adversely affecting the rights and freedoms of others.

39. As has been clarified in the judgment of the Court of Justice of the European Union C-434/16 Peter Nowak v. Data Protection Commissioner, the examination questions do not constitute personal data of each candidate, as they do not represent information relating to that candidate, that is, to an identified or identifiable natural person.

40. Considering that in this specific examination, Part B, the answers were not provided by the candidates, but were given to the candidates by the examiners and the candidates had to score each answer – action,

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It arises that neither the answers – actions, as provided by the examiners, constitute personal data of each candidate.

41. Therefore, through the right of access, it is not possible for a candidate who participated in the examinations to obtain the written essay as well as the answers themselves provided by the examiner. It is not a matter that will concern my Office whether a candidate or another person can obtain this information, outside the framework of the right of access, as provided in the Regulation.

42. It is easily concluded that the written answers of the Complainant constitute her personal data, as they are information linked to her identity. Therefore, the Complainant rightly received a copy of her written work.

43. The score that the Complainant received in the examination constitutes her personal data, as it is information linked to her and reflects her performance, as well as determining her success or failure in the examinations. This specific information was provided to the Complainant, both through the satisfaction of the right of access and previously through the publication of the examination results in the Official Gazette of the Republic.

44. The company that developed the test stated that since the questionnaire is in written and static form, meaning that the same questions are presented in the same order to each candidate completing it, the disclosure of the correct answers for each of the one hundred questions poses the risk of leaking the answers into the Cypriot market, rendering the tool essentially commercially unexploitable for the company.

45. Even in the case where the test is in written and static form, the large number of questions, combined with the fact that candidates do not possess the test, as it is not given to them upon completion, significantly weakens the position that the tool would become commercially unexploitable for the company. In any case, the company and/or the Center should have ensured that due to the decision to have the test in written and static form, meaning that the same questions are presented in the same order to each candidate, the rights of the data subjects are not affected or restricted. Furthermore, no positions have been presented to me that prove beyond any doubt that the test could not have been in a non-written and non-static form or that because it was in written and static form, it becomes commercially unexploitable for the company.

46. Based on the proposal submitted by the Center to the addressee, the answers of each candidate in Part B are recorded by two independent examiners, and if there is a discrepancy in the scores, a third

examiner records the scores. The records of each examiner constitute personal data for the Complainant, as they pertain to her and are linked to her. It can therefore be considered that the records hold the same validity and nature as the corrections made by the examiner, as they determine the Complainant's score on each question.

47. Therefore, taking into account that, based on the grading method, according to which there are two examiners, or three in the case of a discrepancy in the final score exceeding 10%, it arises that for each candidate, there correspond two,

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possibly equal, or three final scores (in case of a difference in the final score exceeding 10%).

Therefore, the final score of each evaluator constitutes personal data of the Complainant, which must be granted to her.

48. In this case, the ideal answer, as determined by the examiner, received a score. It was also possible for other answers to receive scores, depending on how close or far they were from the ideal answer.

49. Consequently, for each candidate's question, two or three scores arise (in case of a difference in the final score exceeding 10%). It follows that the Complainant is entitled to know, for each evaluator separately, the score she received for each question, as well as information regarding how close or far she was from the ideal answer. That is, she is entitled to receive information, for each question, as to whether her answer was the ideal one, the closest to the ideal, the second closest to the ideal, etc. This information aims to show the Complainant whether she succeeded in the specific question, or how much she "fell short of success."

50. As mentioned in the Center's proposal to the Respondent, the results of the competency tests are derived through statistical software. If the final results were obtained after statistical processing, the Complainant is entitled to receive information about the score attributed to her, both before and after the statistical processing, since these scores pertain to her and, therefore, constitute her personal data.

51. There is, of course, the possibility that for a specific question the same score was recorded by both evaluators, without this necessarily meaning that this score is the correct score that the candidate should have received. This occurs in cases where the two (or even three) evaluators recorded the same answer in the system, which is different from the answer provided by the candidate.

52. Beyond the above, if in addition to the page on which the Complainant recorded her answers, she used other sheets, for example as drafts or for notes, and these can identify her, then these must be provided to her within the framework of the right of access.

53. Based on the above, it follows that the Complainant is entitled, within the framework of the right of access, to receive the following:

53.1. a copy of her written exam. It is noted that her copy has already been provided,

53.2. the final score she received. It is noted that this information has already been provided both in the context of satisfying her request and during the announcement of the results in the Official Gazette of the Republic,

53.3. the final score she received from each evaluator,

53.4. the recording for each question made by each evaluator,

53.5. the score for each question attributed to her by the system for each evaluator,

53.6. for the above, if statistical processing was performed, the score the Complainant received before and after the statistical processing,

53.7. information, for each answer – recording of each evaluator, as to whether it was the ideal, the closest to the ideal, the second closest to the ideal, etc.

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53.7. other notes of the Complainant that may identify her.

54. Therefore, it follows that the Respondent did not fully satisfy the Complainant's right of access, in violation of Article 15(1) thereof. That is, the Respondent did not properly and fully satisfy the Complainant's right of access.

55. However, I assess positively and accept as a mitigating factor the fact that a copy of her written response was provided to the Complainant.

56. The above conclusions are not affected by the fact that, during the registration and grading, the identity of the Complainant, as well as that of the other candidates, was not known to the examiners and to the individuals who entered the answers into the system.

57. The Respondent informed my Office that he never obtained access to and/or possession of Part B, due to his agreement with the Center. Also, some of the above-mentioned elements of paragraph 53 that the Complainant must receive may not be held by the Respondent. This in no way affects the obligations of the Respondent towards the Complainant, as well as the obligations of the Center, as the data processor, towards the Respondent, as the data controller. Therefore, even if some or any of the above data of the Complainant are not held by the Respondent but are only held by the Center, they must be provided to her. This obligation is not negated by the fact that the contract states that the intellectual property rights over the subjects, the grading guide, and the correct answers belong exclusively to the Center or, as the case may be, to the examiner.

58. It must therefore be made clear that contracts concluded between any parties, in this case, the Respondent and the Center, concerning personal data, cannot affect the obligations of each party as provided for by the Regulation.

59. The Respondent did not provide me with any of the information I requested in my letter dated May 5, 2023, which I deemed necessary to fulfill my duty, as provided for by Article 57(1)(f) of the Regulation and concerning the handling of the complaints submitted and the investigation, as appropriate, of the subject matter of the complaint. This information was submitted to my Office in the context of executing a Directive that I addressed to him, through my prima facie Decision dated February 2, 2024.

60. The failure to provide the requested information to my Office indicates a lack of cooperation by the Respondent with my Office, as is his obligation. This conclusion is reinforced by the fact that despite my granting the request for an extension of the Respondent's response deadline, which I received on May 5, 2023, I did not receive, within the deadline I set, the requested information, nor did I receive any update on the reasons for non-response or a request for a new extension. Furthermore, XXX. The above conclusion is also supported by the fact that I did not receive a response to the new deadline I set for the Respondent in my letter dated August 7, 2023, nor after the telephone communications of an Officer of my Office with the Respondent regarding the complaint.

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61. The fact that the data protection officer of the Respondent did not inform the Directorate, or possibly other staff of the Respondent, combined with her absence, resulted in the Directorate of the Respondent being unaware of the investigation of the complaint. I understand and agree that the case under investigation is XXX. However, this does not mean that the Directorate of the Respondent should not have been informed about the complaint, as well as kept regularly updated on the progress of its investigation. Furthermore, it became apparent that the Respondent did not have the appropriate procedures in place to ensure that issues related to personal data protection could be addressed smoothly and consistently in the absence of the data protection officer. At this point, I note that the sending of emails from my Office to the Respondent was at least to the email address dpo@hio.org.cy, that is, not to a personal address of the data protection officer or another employee of the Respondent.

62. In no case do I imply that the delay was intentional or that there was an intention to cause inconvenience or obstruct my work, or that there was reluctance to respond and provide the requested information to my Office. However, the fact that the data protection officer of the Respondent requested an extension upon receiving my letter dated May 5, 2023, cannot be considered as an

indication of intent for immediate cooperation and assistance with my work, since apart from this action, she did not take any other steps before the issuance of my preliminary Decision dated February 2, 2024.

63. The Respondent stated that the observed delay is a result of human error and/or incorrect procedure. Firstly, I emphasize that there was no delay, but rather a failure to respond to repeated attempts to duly perform my duties and responsibilities. In any case, I believe that the process that would have reduced the likelihood of human error was absent. Therefore, it is primarily a matter of process, rather than human error. Additionally, the existence of a proper procedure for assigning and distributing employee duties when that employee is absent from work, which if it exists but is ineffective, would have resulted in the situations that existed during the essential time being addressed. Therefore, I do not accept the Respondent's position that the delay was solely due to circumstances that could not be controlled by the Respondent during the essential time.

64. I do, however, positively assess the Respondent's apology and that she assured that such a thing will not happen again in the future.

65. The Respondent's reference to "the excellent cooperation to date," which I do not dispute, does not play a role in the present case, therefore, it cannot be considered as a mitigating factor.

66. Furthermore, the fact that the Respondent responded within the deadline set in my preliminary Decision dated February 2, 2024, in no case negates her previous lack of response. Moreover, the provision of the requested information on February 9, 2024, was made in the context of executing a Directive that I addressed to her, while her response dated February 29, 2024, was made in the context of exercising a right to be heard.

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67. As a result of the above, I find that the Respondent did not cooperate with my Office, as she is obliged to do, in violation of Article 31 of the Regulation.

68. The Respondent informed my Office that she has taken corrective measures, such as for example, that correspondence from my Office is sent to her official email address, hio@hio.org.cy, that priority is given to handling requests and letters originating from my Office, and that the staff of the Department have access to the necessary information from the information system, so that they can respond more promptly and efficiently to the requests and letters from my Office.

69. Despite the fact that the above measures may help in fulfilling her obligations, I cannot consider them as a mitigating factor in the imposition of an administrative fine. Furthermore, these actions should apply on a case-by-case basis. For example, in this particular case, XXX.

D. Conclusion

70. Taking into account all the above elements, as they have been presented, and based on the powers conferred upon me by Article 57(1)(f) of the Regulation, I find that there is a violation by the Respondent of:

70.1. Article 15(1) of Regulation (EU) 2016/679, because she did not fully satisfy the right of access of the Complainant, and

70.2. Article 31 of Regulation (EU) 2016/679, because she did not demonstrate the cooperation required by the Regulation with my Office.

71. Based on the provisions of Article 83 of the Regulation, regarding the conditions for imposing administrative fines, to the extent that they apply in this specific case, in determining the administrative fine, I took into account the following mitigating factors (a) – (d):

(a) the incident involved a single data subject,

(b) the right of access was partially satisfied,

(c) there was no indication of intent on the part of the Respondent,

(d) the Respondent's apology.

72. After considering and weighing:

(a) the current legislative framework regarding the prescribed administrative sanctions in the provisions of Article 58(2) and Article 83 of the Regulation,

(b) all the circumstances and factors that the Complainant and the Respondent presented to me based on all the existing correspondence,

(c) the above mitigating factors,

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Having regard to the above facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(h) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions:

to impose on the Health Insurance Organization:

an administrative fine of one thousand five hundred euros (€1,500) for violation of Article 15(1) of Regulation (EU) 2016/679, due to the failure to fully satisfy the access right of the Complainant,

an administrative fine of three thousand euros (€3,000) for violation of Article 31 of Regulation (EU) 2016/679, due to the failure to demonstrate the cooperation required by the Regulation with my Office and

to order the Health Insurance Organization to satisfy the access right of the Complainant within three weeks from the receipt of this Decision, in accordance with paragraph 53 of this Decision and to inform me accordingly.

Peace Loizidou Nicolaidou
Commissioner for the Protection
of Personal Data
December 18, 2024